UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

Midcontinent Independent System Operator, Inc.	)))	Docket No. ER27-25-000

PROTEST AND REQUEST FOR CLARIFICATION OF THE AMERICAN CLEAN POWER ASSOCIATION AND SOUTHERN RENEWABLE ENERGY ASSOCIATION

Pursuant to Rules 211 and 212 of the Federal Energy Regulatory Commission's ("Commission") Rules of Practice and Procedure,[1] the American Clean Power Association ("ACP") and Southern Renewable Energy Association ("SREA") (together, "Clean Energy Trades") submit this protest and request for clarification regarding the Large Load Addition Resource Study ("LARS") proposal filed by the Midcontinent Independent System Operator, Inc. ("MISO") on October 2, 2026 ("Filing").[2]

ACP is the leading national trade association representing companies across the clean power industry, including developers, owners, and operators of wind, solar, and energy storage facilities, many of which hold or are pursuing generator interconnection requests in MISO's Definitive Planning Phase ("DPP") queue. SREA is a non-profit regional trade association that works to promote the responsible development and use of utility-scale wind energy, solar energy, energy storage, and transmission solutions throughout the South. The Clean Energy Trades'

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1 18 C.F.R. §§ 385.211, 385.212.

2 Midcontinent Independent System Operator, Inc., Large Load Addition Resource Study Process, Docket No. ER27-25-000 (Oct. 2, 2026) ("Transmittal Letter"). The Filing includes redlined Tariff sheets (Tab A) and the Prepared Direct Testimony of Christina Drake (Tab C) ("Drake Testimony"). Capitalized terms not otherwise defined herein have the meanings given in the Transmittal Letter or the MISO Tariff. ACP and SREA previously submitted to the Commission timely doc-less motions to intervene on October 21,2026 and October 7, 2026, respectively. *See* Doc-Less Motion to Intervene of the American Clean Power Association, Docket No. ER27-25-000 (Oct. 21, 2026); Doc-Less Motion to Intervene of the Southern Renewable Energy Association, Docket No. ER27-25-000 (Oct. 7, 2026).

members include independent power producers ("IPPs") that develop generation to serve large loads and that would be directly affected by both the access rules LARS establishes and the effect of LARS on the transmission capacity and Network Upgrade costs available to projects in the DPP.

MISO describes LARS as a proposal that "leverages the existing success in the MISO's Expedited Project Review ('EPR') process on the load side and lessons learned from Expedited Resource Additions Study ('ERAS') process on the generation side."[3] The structure of LARS is indeed similar to that of ERAS and it raises the same open access, undue discrimination, and queue integrity concerns that the Clean Energy Trades raised in the ERAS proceedings, which remain pending before the U.S. Court of Appeals for the District of Columbia Circuit.[4] But LARS goes further than ERAS in ways the Commission has never accepted. It is permanent and uncapped. It is untethered to any identified resource adequacy need. It hands the application and the pairing decision to the load-serving entity ("LSE") rather than to MISO. And it is not what the Commission's Show Cause Order described. Most fundamentally, LARS unduly discriminates against IPPs by failing to provide comparable access to a Commission-jurisdictional generator interconnection process. LARS is also an attempt to convert what was a temporary, extraordinary measure into a permanent feature of MISO's operations. Further, MISO fails to justify LARS as an independent entity variation from the Commission's *pro forma* Large Generator Interconnection Procedures ("LGIP"). For the reasons set forth below, the Commission should reject the Filing.

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3 Transmittal Letter at 2.

4 *See Midcontinent Indep. Sys. Operator, Inc.*, 192 FERC ¶ 61,064 (2025) ("ERAS Acceptance Order"), *order addressing arguments raised on reh'g*, 194 FERC ¶ 61,050, at P 1 & n.4 (2026) ("ERAS Rehearing Order") (noting rehearing request of the Clean Energy Associations, including ACP).

I. BACKGROUND

A. MISO's Initial and Revised ERAS Proposals

On May 16, 2025, the Commission rejected MISO's initial ERAS proposal, finding that MISO had "not demonstrated that its ERAS proposal is a just and reasonable and not unduly discriminatory or preferential approach for addressing MISO's stated resource adequacy and reliability needs."[5] The Commission identified two defects. First, the proposed Tariff placed "no limit on the number of projects that could be entered in the ERAS process," which could produce an ERAS queue with processing times "similar to the challenges with the current DPP queue" and "a volume of ERAS interconnection requests untethered to reliability or resource adequacy needs."[6] Second, MISO had not shown "how the ERAS process is sufficiently targeted to study only interconnection requests needed to meet the anticipated shortfall in generating capacity described by MISO."[7] Commissioners Rosner and See each concurred separately.[8]

MISO refiled a revised ERAS proposal that the Commission accepted on July 21, 2025. The accepted ERAS process is capped at 68 interconnection requests, with ten reserved for IPPs that have agreements with entities other than LSEs and eight reserved for requests serving retail-choice load; it requires verification by a Relevant Electric Retail Regulatory Authority ("RERRA") of a specific resource adequacy need; and it sunsets on the earlier of August 31, 2027 or completion of the sixty-eighth study.[9] The Commission explained that these changes "ensure the ERAS process is sufficiently limited in scope to swiftly address discrete, demonstrated resource adequacy

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5 *Midcontinent Indep. Sys. Operator, Inc.*, 191 FERC ¶ 61,131, at P 197 (2025) ("ERAS Rejection Order").

6 *Id.* P 199.

7 *Id.* P 201.

8 *Id.* (Rosner, Comm'r, concurring); *id.* (See, Comm'r, concurring).

9 ERAS Acceptance Order, 192 FERC ¶ 61,064 at PP 16-17, 203.

needs in a narrowly tailored fashion, and on a temporary, time-limited basis," and that "the limited, one-time design of the process weighed significantly on our decision here."[10] MISO's own witness in this proceeding describes ERAS as the "temporary Expedited Resource Addition Study ('ERAS') process."[11]

B. The Show Cause Order

On June 18, 2026, the Commission instituted a proceeding under section 206 of the Federal Power Act ("FPA") in Docket No. EL26-70-000.[12] As relevant here, the Commission preliminarily found that MISO's Tariff "appears to be unjust and unreasonable because it lacks a generator interconnection study process and/or generator interconnection service to reflect an interconnection customer's commitment in an interconnection agreement to limit the generating facility's output to minimize the impact on the transmission system while serving an electrically proximate large load or large co-located load."[13] The Commission defined "electrically proximate large load" as a large load sufficiently close to the generator's requested point of interconnection ("POI") "such that the impact on the transmission system of the combination of the generating facility and the load, with the exception of the transmission facilities between the two, will be effectively the same as if they were located at the same substation (e.g., large load that is located no more than two substations away from the generating facility)."[14] The Commission further stated that, where the generating facility serves an electrically proximate large load, "we believe that the generator interconnection service should be of an interim nature until the interconnection customer

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10 *Id.* P 195; *see also* ERAS Rehearing Order, 194 FERC ¶ 61,050 at P 12 (quoting same).

11 Drake Testimony at 2.

12 *Midcontinent Indep. Sys. Operator, Inc.*, 195 FERC ¶ 61,212 (2026) ("Show Cause Order").

13 *Id.* P 113.

14 *Id.* P 112.

obtains Energy Resource Interconnection Service (ERIS) or Network Resource Interconnection Service (NRIS)."[15] Separately, the Commission directed MISO to file an informational report on proposals under consideration to address resource adequacy for new large loads.[16]

C. The LARS Proposal

MISO proposes LARS as a new, permanent study process under which a large load of at least 200 megawatts ("MW") and one or more new Generating Facilities are studied in parallel, with the generator receiving a Large Load Generator Interconnection Agreement ("LLGIA") for NRIS in approximately 120 days.[17] MISO will run three LARS study periods per year, each with up to ten LARS Applications studied serially on a first-come, first-served basis.[18] The LARS Application may be initiated and submitted only by the "LARS Associated Transmission Customer"—the entity that procures Transmission Service for the load, which MISO acknowledges "is often" an LSE.[19] The LARS Associated Transmission Customer also pays the $250,000 non-refundable application deposit.[20] A LARS Generating Facility need only be located in the same Local Resource Zone ("LRZ") as the load, may request NRIS up to 150% of the load's peak demand, and must remain paired with the load for fifteen years, after which its Interconnection Service continues regardless of whether the load remains.[21] LARS studies will

15 *Id.* P 115.

16 *Id.* P 122.

17 Transmittal Letter at 7, 11; Drake Testimony at 5, 28.

18 Transmittal Letter at 9; Drake Testimony at 22; Tab A, Attachment X, § 3.12.3.

19 Transmittal Letter at 6, 8; Tab A, Attachment X, §§ 1, 3.12.1.

20 Transmittal Letter at 8.

21 *Id.* at 10, 16-18; Tab A, Attachment X, §§ 3.12.2, 3.12.7.4.

exclude DPP Interconnection Requests that lack an executed Generator Interconnection Agreement ("GIA").[22]

II. PROTEST

Because MISO filed LARS under FPA section 205, MISO bears the burden of demonstrating that its proposal is just and reasonable and not unduly discriminatory or preferential.[23] MISO has not carried that burden. LARS is unduly discriminatory because it makes the LSE the gatekeeper of a Commission-jurisdictional generator interconnection process and gives LSEs contracting options that IPPs do not have. It is also unjust and unreasonable on its own terms. It is a permanent, uncapped priority queue untethered to any demonstrated need, it does not reflect the electrically proximate configuration the Show Cause Order described, and it shifts transmission capacity and costs away from DPP customers. These are the same defects the Commission identified when it rejected MISO's initial ERAS proposal. Finally, MISO has not shown that LARS satisfies the independent entity variation standard.

A. LARS Would Unduly Discriminate Against Independent Power Producers and Create Opportunities for LSE Self-Dealing.

i. Open access requires that all interconnection customers have comparable access to Commission-jurisdictional interconnection service.

The Commission's open access framework rests on the premise that a transmission provider must offer service to third parties on the same or comparable basis that it provides service to itself. In Order No. 888, the Commission required "that all public utilities must offer . . . services on a non-discriminatory open access basis" and explained that "[a]n open access tariff that is not unduly discriminatory or anticompetitive should offer third parties access on the same or

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22 Transmittal Letter at 12; Drake Testimony at 14, 28-29.

23 16 U.S.C. § 824d; *see* ERAS Rejection Order, 191 FERC ¶ 61,131 at P 197.

comparable basis, and under the same or comparable terms and conditions, as the transmission provider's uses of the system."[24] The Commission adopted that rule because it found that transmission owners with generation interests have the incentive to use their control of the grid to favor their own resources.[25]

In Order No. 2003, the Commission extended those requirements to generator interconnection, recognizing that interconnection is a "critical component of open access transmission service and thus is subject to the requirement that utilities offer comparable service under the [*pro forma* open access transmission tariff]."[26] The Commission adopted standard procedures to "minimize opportunities for undue discrimination and expedite the development of new generation, while protecting reliability and ensuring that rates are just and reasonable."[27] Central to that framework is a single, non-discriminatory generator interconnection queue administered by the transmission provider, to which any interconnection customer may submit a request on equal terms. The Commission has consistently found the comparable ability of all

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24 *Promoting Wholesale Competition Through Open Access Non-Discriminatory Transmission Servs. by Pub. Utils.; Recovery of Stranded Costs by Pub. Utils. & Transmitting Utils.*, Order No. 888, FERC Stats. & Regs. ¶ 31,036, at 31,647 (1996) (cross-referenced at 75 FERC ¶ 61,080) ("Order No. 888"), *order on reh'g*, Order No. 888-A, FERC Stats. & Regs. ¶ 31,048, *order on reh'g*, Order No. 888-B, 81 FERC ¶ 61,248 (1997), *order on reh'g*, Order No. 888-C, 82 FERC ¶ 61,046 (1998), *aff'd in relevant part sub nom. Transmission Access Pol'y Study Grp. v. FERC*, 225 F.3d 667 (D.C. Cir. 2000), *aff'd sub nom. New York v. FERC*, 535 U.S. 1 (2002); *see also* ERAS Acceptance Order, 192 FERC ¶ 61,064 at P 193 & n.483.

25 *See* Order No. 888, FERC Stats. & Regs. ¶ 31,036 at 31,682 ("It is in the economic self-interest of transmission monopolies, particularly those with high-cost generation assets, to deny transmission or to offer transmission on a basis that is inferior to that which they provide themselves.").

26 *Standardization of Generator Interconnection Agreements & Procs.*, Order No. 2003, 104 FERC ¶ 61,103, at PP 9, 12 (2003) ("Order No. 2003"), *order on reh'g*, Order No. 2003-A, 106 FERC ¶ 61,220, *order on reh'g*, Order No. 2003-B, 109 FERC ¶ 61,287 (2004), *order on reh'g*, Order No. 2003-C, 111 FERC ¶ 61,401 (2005), *aff'd sub nom. Nat'l Ass'n of Regul. Util. Comm'rs v. FERC*, 475 F.3d 1277 (D.C. Cir. 2007); *see* ERAS Acceptance Order, 192 FERC ¶ 61,064 at P 194.

27 Order No. 2003, 104 FERC ¶ 61,103 at P 11.

generator interconnection customers to submit an interconnection request to be a critical element of a just and reasonable and not unduly discriminatory process.[28]

Priority interconnection processes are, by their nature, in tension with these principles. As Commissioner See explained in concurring in the rejection of MISO's initial ERAS proposal, "where a proposal's goal is to get some interconnection requests through the study process faster than others, the Commission is by definition asked to greenlight discrimination," and "[t]o justify that step under our statutory mandate, priority processes should be tailored enough to accomplish the identified ends."[29] The Commission likewise held that MISO "must ensure that this proposal is aligned with the Commission's open access principles in an objective and transparent manner in order to meet the FPA's requirements that rates be just and reasonable and not unduly discriminatory or preferential."[30] LARS does not meet that standard.

ii. LARS makes the LSE the gatekeeper of a Commission-jurisdictional generator interconnection process.

Unlike any generator interconnection process the Commission has accepted, an interconnection customer seeking LARS treatment cannot submit its request to MISO. Under proposed Section 3.12.1, "[t]he LARS Associated Transmission Customer initiates the submission of the LARS Application for the proposed load and associated generation," and MISO confirms that the LARS Associated Transmission Customer "is the only party that may submit the LARS

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28 *See* ERAS Acceptance Order, 192 FERC ¶ 61,064 at P 204 & n.510 (citing *PJM Interconnection, L.L.C.*, 190 FERC ¶ 61,084, at P 123 (2025) ("PJM RRI Order") (comparable ability to submit an interconnection request); *Cal. Indep. Sys. Operator Corp.*, 188 FERC ¶ 61,225, at P 94 (2024) ("CAISO IPE Order") (comparable ability to join the cluster)); Protest of the Clean Energy Associations, Docket No. ER25-1674-000, at 43 (Apr. 7, 2025) ("CEA Protest").

29 ERAS Rejection Order, 191 FERC ¶ 61,131 (See, Comm'r, concurring at P 2) (citing PJM RRI Order, 190 FERC ¶ 61,084 at P 248).

30 *Id.* P 203.

Application."[31] In practice, the LARS Associated Transmission Customer will be the LSE that procures transmission service on behalf of the large load (hereinafter, the "LSE"). The LSE pays the non-refundable application deposit, designates which load is "formally paired" with which Interconnection Request, and decides whether any application is submitted at all.[32] MISO states that allowing the generator and load to contract directly "does not supersede the role of the LARS Associated Transmission Customer to determine whether to submit a LARS Application."[33] The POI, in turn, must be negotiated by the Interconnection Customer with and attested to by the Transmission Owner before the application may be filed.[34] Because MISO is primarily a vertically integrated region, in which the LSE and the Transmission Owner are frequently the same utility or affiliates, the LSE thus controls the generator-side application process entirely.

Even an IPP with a direct offtake agreement with the large load must be sponsored by the LSE's application; there is no path for an IPP to deal directly with MISO for purposes of accessing the generator interconnection queue. And in most MISO states, retail service laws prohibit an IPP from contracting to serve the load directly—a point MISO itself acknowledges by adding Tariff language providing that LARS does not authorize a generator that is not an LSE to serve load where state law does not allow it.[35] In those states, the IPP's only possible counterparty is the same utility that controls the application and that may compete to self-build the generation. To be clear, the Clean Energy Trades' concern is with ensuring that access to a Commission-jurisdictional generator interconnection process is not unduly discriminatory, consistent with the Commission's

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31 Tab A, Attachment X, § 3.12.1; Transmittal Letter at 8; *see also* Drake Testimony at 18.

32 Transmittal Letter at 8-9; Tab A, Attachment X, § 1 (definition of LARS Associated Transmission Customer).

33 Transmittal Letter at 9.

34 Tab A, Attachment X, § 3.12.1.

35 Tab A, Attachment X, § 3.12.2; Transmittal Letter at 30.

open access principles. The Clean Energy Trades fully acknowledge that certain state laws in MISO restrict third-party competitive generation from serving retail load and the Clean Energy Trades do not seek to change those laws or to expand retail competition through this proceeding.

The Commission has recognized that utilities with generation interests have the incentive to discriminate when given the opportunity. Indeed, that is the premise of Order Nos. 888 and 2003, and of the independent entity variation itself.[36] The concern is particularly acute in MISO, which, as Commissioner See observed, "is largely comprised of vertically integrated States." Illinois and part of Michigan are the only retail choice jurisdictions in MISO.[37] The Commission addressed this very risk in ERAS, where MISO reserved ten slots for IPPs with agreements with entities other than LSEs specifically "to address claims that LSEs could block independent power producers from participating in the ERAS process," and eight slots for retail-choice load.[38] The Commission relied on those carve-outs to find that "all interconnection customers will have comparable ability to seek to participate in the ERAS process, regardless of location and ownership type."[39] ERAS also required a RERRA to verify the need for each project, including LSE self-supply projects.[40] LARS has no carve-out, no RERRA or other regulatory check, and no scoring criteria.

While it is reasonable for LSEs to initiate and oversee LARS requests on the *load* side, given state jurisdiction over retail service and LSEs' obligations to serve load, that logic does not

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36 *See* Order No. 888, FERC Stats. & Regs. ¶ 31,036 at 31,682; Order No. 2003, 104 FERC ¶ 61,103 at P 827.

37 ERAS Rejection Order, 191 FERC ¶ 61,131 (See, Comm'r, concurring at P 4 & n.6); *see also id.* (Rosner, Comm'r, concurring at P 5) ("[I]n MISO, . . . most states are vertically integrated.").

38 ERAS Acceptance Order, 192 FERC ¶ 61,064 at PP 203-205.

39 *Id.* P 204.

40 *Id.* PP 198-201, 207.

extend to the generation side, where generator interconnection procedures fall within the Commission's exclusive jurisdiction and are subject to open access requirements.[41] Nothing prevents MISO from allowing an interconnection customer to initiate the generator portion of a LARS Application directly with MISO, with an obligation on the LSE and Transmission Owner to respond. Stakeholders asked MISO to do exactly that and MISO declined without explanation.[42] Allowing incumbent LSEs to gain complete control of the entry point to a new, expedited generator interconnection process is inconsistent with the Commission's exclusive jurisdiction over generator interconnection and with its open access rules.

iii. LARS does not offer interconnection service on a comparable and non-discriminatory basis to similarly situated interconnection customers.

The designation of the LSE as the sole entity that may submit an application is not the only obstacle to open access. LARS' eligibility requirements also discriminate against third-party competitive generation. Every LARS application requires an executed, binding agreement between the Interconnection Customer and either the LSE or the entity that owns or controls the load.[43] Even in the hypothetical scenario in which an LSE agrees to incorporate a third party's Interconnection Request into its LARS application, the third party must produce either a power purchase agreement ("PPA") or similar offtake agreement with the load, or a Build-Own-Transfer

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41 *See* Show Cause Order, 195 FERC ¶ 61,212 at P 110 ("The Commission also has exclusive jurisdiction to regulate the procedures and agreements applicable to generating facilities seeking to interconnect to a Commission-jurisdictional distribution facility or transmission facility." . . . "[T]he Commission retains jurisdiction over a generator's interconnection even where the generator plans to serve an electrically proximate large load.").

42 *See* American Clean Power Association Comments on Generation and Large Load Alignment, MISO Large Load Working Group (July 30, 2026), *available at:* LLWG: Generation and Large Load Alignment (LLWG-2026-6) (20260716).

43 Tab A, Attachment X, § 3.12.2(i).

agreement transferring the facility to the LSE or load.[44] An LSE, however, may instead rely on "evidence of other types of agreements that provide that the generation is intended to serve the LARS Associated Load customer," including "a special contract, a large load tariff agreement, or retail service agreement."[45] MISO's witness explains that this third option was added specifically to accommodate "specific utility arrangements with large loads where the LSE business model uses one or more agreements that are not traditional PPAs."[46] LSEs are thus afforded far more flexible means of qualifying than are IPPs.

Comparable flexibility for third parties is necessary both to avoid undue discrimination and to provide commercially viable options. Requiring an executed PPA as a condition of entry into an interconnection process is inconsistent with the project development life cycle. In Order No. 2023, the Commission declined to adopt the non-financial commercial readiness demonstrations proposed in the NOPR—which included executed contracts—recognizing that such demonstrations "may be unavailable to interconnection customers with commercially viable projects," for example "as a result of a misalignment of the timing between resource procurement decisions and interconnection study processes."[47] Network Upgrade costs were not known at the time of an ERAS application and they will not be known at the time of a LARS application; an IPP must commit to binding offtake terms without knowing its interconnection costs, while the LSE may rely on a retail tariff arrangement whose costs can be passed through to ratepayers.

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44 *Id.* § 3.12.2(i)(a)-(b).

45 *Id.* § 3.12.2(i)(c).

46 Drake Testimony at 31-32; *see also* Transmittal Letter at 9.

47 *Improvements to Generator Interconnection Procs. & Agreements*, Order No. 2023, 184 FERC ¶ 61,054, at PP 694-695 (2023) ("Order No. 2023"), *order on reh'g*, Order No. 2023-A, 186 FERC ¶ 61,199 (2024).

The Clean Energy Trades recognize that, in ERAS, the Commission found that a similar distinction between IPP agreement options and LSE self-supply did not render the proposal unjust and unreasonable.[48] But the Commission reached that conclusion because LSE self-supply under ERAS "must still be verified by a RERRA," because ERAS reserved slots for IPPs with non-LSE agreements, and because the process was limited in duration and size.[49] None of those safeguards exists in LARS. The ERAS agreement requirement was also more flexible for IPPs than the LARS requirement. Under ERAS, any interconnection customer—including an IPP—could satisfy the requirement through an "other" executed agreement, an option MISO added to establish "a minimum requirement that an arrangement exists between the driver of the need and the project to address that need," and which the Commission found "provides considerable flexibility for interconnection customers, including independent power producers."[50] LARS includes a similar catch-all—"other types of agreements that provide that the generation is intended to serve the LARS Associated Load customer"—but makes it available only to LSEs and Alternative Retail Electric Suppliers.[51] That IPPs were able to participate in ERAS therefore says little about whether they can do so on comparable terms under LARS.

The practical result of these restrictions on open access will be (1) a reduction in the pool of supply options with timely GIAs available to large load offtakers and for state consideration in competitive solicitation processes; (2) the ability of LSE self-supply to drive the cost of new generation serving large loads; and (3) the general elimination of visibility into the pricing of

48 ERAS Acceptance Order, 192 FERC ¶ 61,064 at P 207.

49 *Id.* PP 195, 203-207.

50 ERAS Acceptance Order, 192 FERC ¶ 61,064 at P 208 & n.520 (quoting Witmeier Testimony at 42).

51 Tab A, Attachment X, § 3.12.2(i)(c); *see* Drake Testimony at 31 (describing option (c) as establishing "a minimum requirement that an arrangement exists between the LARS Associated Transmission Customer and the Interconnection Customer").

alternative generation that could have obtained timely GIAs on comparable terms. MISO's assurance that LARS is "open to all Interconnection Customers that meet the Tariff's requirements" does not answer these concerns, because the Tariff's requirements themselves are what deny comparable access.[52]

B. LARS Is Not Just and Reasonable.

i. LARS is a permanent, uncapped expedited queue untethered to any identified need, unlike every expedited interconnection process the Commission has accepted.

The Show Cause Order did not direct MISO to create a separate, permanent, expedited generator interconnection queue. The Commission expressed concern about the absence of "a generator interconnection study process and/or generator interconnection service" reflecting a generator's commitment to limit its output while serving an electrically proximate large load.[53] The Commission did not require that such a process operate outside of, or ahead of, the DPP, and it stated that service to a generator serving an electrically proximate large load "should be of an interim nature until the interconnection customer obtains [ERIS] or [NRIS]."[54] LARS does the opposite: it grants permanent NRIS through a parallel process that MISO describes as "a permanent MISO study process."[55] Moreover, the Filing makes clear that even where the paired LARS Associated Load ceases taking service, or the agreement pairing the generator and the load terminates, during the fifteen-year pairing period, the LARS generator may continue to operate under its LLGIA—subject to MISO's Annual ERIS and Quarterly Operating Limit processes—

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52 Transmittal Letter at 52; *see also* Drake Testimony at 18-19 (asserting that LARS requirements are "facially neutral").

53 Show Cause Order, 195 FERC ¶ 61,212 at P 113.

54 *Id.* P 115.

55 Transmittal Letter at 11; *see also* Drake Testimony at 10-12, 28.

not only for a one-year transition period, but for as long as DPP processing of its new Interconnection Request is delayed beyond that year.[56] In effect, this work-around creates an exclusive pathway for LSE-selected generators to leverage their access to LARS to obtain expedited interconnection that persists even after the paired load is gone, undermining the very basis for granting those generators priority access in the first place.

Nor did the Show Cause Order's invitation for resource adequacy proposals relax the FPA section 205 standard. The Commission directed MISO to report on proposals under consideration to address resource adequacy for new large loads and "strongly encourage[d] new proposals to the extent necessary to address these concerns."[57] An invitation to propose solutions is not a pre-approval of whatever MISO proposes and it does not displace the Commission's consistent requirement that priority interconnection processes be bounded and tailored to an identified need.

Every expedited interconnection process the Commission has accepted has been bounded. In PJM's Reliability Resource Initiative ("RRI"), PJM specified that it would study no more than 50 projects on a one-time basis, "providing clear bounds in its tariff."[58] The revised MISO ERAS process is capped at 68 requests and sunsets no later than August 31, 2027—limits that remained in place even when the Commission later accepted an increase in the number of requests MISO may study each quarter.[59] SPP's ERAS was a one-time process that limited the capacity that may participate through a formula tied to each participating load-responsible entity's resource adequacy

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56 Transmittal Letter at 16-18, 41-42; Tab A, Attachment X, Appendix 6, art. 2.3.1; Drake Testimony at 36-37.

57 Show Cause Order, 195 FERC ¶ 61,212 at P 122.

58 ERAS Rejection Order, 191 FERC ¶ 61,131 at P 200 (citing PJM RRI Order, 190 FERC ¶ 61,084 at P 242).

59 ERAS Acceptance Order, 192 FERC ¶ 61,064 at PP 17, 203, 264; *see Midcontinent Indep. Sys. Operator, Inc.*, 193 FERC ¶ 61,168, at P 1 (2025) (accepting increase in quarterly ERAS study limit from 10 to 15 requests); ERAS Rehearing Order, 194 FERC ¶ 61,050 at P 45.

deficiency.[60] SPP's High Impact Large Load Generation Assessment ("HILLGA")—the model the Show Cause Order itself discussed—is an "interim" service that the Commission accepted as "a flexible, expedited, and separate serial interconnection process that will facilitate the prompt interconnection of generating facilities that are limited to serving a [High Impact Large Load ("HILL")] in the same local area."[61] HILLGA interconnection agreements automatically terminate five years after commercial operation, so that generators using the process must ultimately obtain continued service through SPP's standard generator interconnection queue.[62] In accepting MISO's revised ERAS proposal, the Commission emphasized that "the limited, one-time design of the process weighed significantly on our decision."[63] Commissioner Chang likewise explained that limiting the number of participating projects is "a minimum requirement to avoid creating a perpetual process under which certain resources can bypass the existing queue," and that ERAS was acceptable only because it is "truly a one-time exception to the traditional interconnection process as required by Orders No. 2003 and 2023."[64]

LARS has none of these bounds. It has no overall cap, no sunset, and no limit on the total megawatts that may be studied: thirty generation/load pairs may enter every year, indefinitely.[65] The ten-application limit per study period controls only MISO's workload, not the volume of capacity that LARS will ultimately allocate. That is the precise defect the Commission identified

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60 *See Sw. Power Pool, Inc.*, 192 FERC ¶ 61,062, at PP 32, 111 (2025); ERAS Rehearing Order, 194 FERC ¶ 61,050 at n.205.

61 Show Cause Order, 195 FERC ¶ 61,212 at P 115 (quoting *Sw. Power Pool, Inc.*, 194 FERC ¶ 61,031, at P 64 (2026) ("SPP HILL Order")).

62 SPP HILL Order, 194 FERC ¶ 61,031 at P 34, 69.

63 ERAS Acceptance Order, 192 FERC ¶ 61,064 at P 195.

64 *Id.* (Chang, Comm'r, concurring at PP 7-8).

65 Transmittal Letter at 9; Tab A, Attachment X, § 3.12.3.

in the initial ERAS proposal, which it rejected in part because MISO proposed "up to 14 opportunities to enter the ERAS process through 2028," exacerbating "the potential for a volume of ERAS interconnection requests untethered to reliability or resource adequacy needs."[66] LARS offers unlimited opportunities with no end date. Moreover, unlike SPP's HILLGA agreements, LARS LLGIAs have no term limit to ensure that LSE-selected generators are ultimately processed through a non-discriminatory generator interconnection queue.[67]

Nor is LARS tethered to any identified resource adequacy need. Unlike ERAS, LARS requires no RERRA verification of a resource adequacy deficiency, and it does not limit participation to resources needed to meet a demonstrated shortfall. To the contrary, MISO concedes that "MISO's existing processes have been sufficient to ensure resource adequacy in the short term."[68] MISO's witness states that "LARS primarily addresses a timing issue": EPR studies for large loads can be completed on a 90-day timeline, while the DPP is designed for a 365-day timeline.[69] A timing mismatch is a reason to complete the DPP reforms MISO describes, or at most to adopt a transitional, bounded tool of the kind the Commission accepted for ERAS—not to create a permanent parallel queue controlled by LSEs. MISO itself testifies that its ongoing queue reforms "are producing—and will continue to produce—significant process efficiencies."[70] MISO has implemented automated interconnection studies through its SUGAR software, a queue cap, and, most recently, proposed the Legacy Queue Acceleration framework, which the Clean Energy

66 ERAS Rejection Order, 191 FERC ¶ 61,131 at P 199.

67 *Compare* SPP HILL Order, 194 FERC ¶ 61,031 at PP 34, 69], *with* Tab A, Attachment X, § 3.12.7.4 (Interconnection Service continues after fifteen years).

68 Transmittal Letter at 3.

69 Drake Testimony at 12.

70 *Id.* at 6.

Trades support.[71] If MISO believed those reforms would fail, it should have said so and supported that claim. It says the opposite.

MISO's stated reasons for permanence do not cure the problem. MISO argues that a temporary process "would create unnecessary costs and uncertainty," that it would be inefficient to "weigh down the DPP" with requests already paired with a large load, and that a permanent process "will help MISO avoid a rush of projects like was experienced with ERAS."[72] Each of those rationales is an argument for giving a favored class of interconnection customers a permanent, faster path to injection rights—not a reason the Commission's tailoring requirement should not apply. The "rush of projects" MISO experienced under ERAS is evidence of the demand for priority treatment, which is exactly why the Commission has insisted on firm limits.[73]

ii. LARS does not provide the electrically proximate, output-limited service the Show Cause Order described, and its same-LRZ pairing grants broad priority injection rights to generators that need not be operationally tied to the load.

The Show Cause Order's preliminary finding was premised on a specific operational configuration: an interconnection customer's "commitment in an interconnection agreement to limit the generating facility's output to minimize the impact on the transmission system while serving an electrically proximate large load."[74] The Commission repeatedly described service that reflects "an interconnection customer's commitment in an interconnection agreement to limit a

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71 *Id.* at 6; Transmittal Letter at 15 n.67; *see* Comments of the American Clean Power Association, Docket No. ER26-3813-000 (Oct. 5, 2026). MISO asked the Commission to act on that proposal by October 19, 2026, ahead of the October 20, 2026 close of Decision Point II for the DPP-2022 cycle. *See* Motion for Leave to Answer and Answer of the Midcontinent Independent System Operator, Inc., Docket No. ER26-3813-000, at 1 (Oct. 12, 2026). As of the date of this filing, the Commission has not acted on the proposal.

72 Drake Testimony at 10-11.

73 *See* ERAS Rejection Order, 191 FERC ¶ 61,131 (Rosner, Comm'r, concurring at P 3) ("[T]here is no guarantee that interest in ERAS will be limited . . . .").

74 Show Cause Order, 195 FERC ¶ 61,212 at P 113.

generating facility's output to match the hourly forecast of an electrically proximate large load," and generating facilities "with necessary control technologies and/or protection systems" that ensure injections do not exceed contractual limits.[75] The rationale was that, where the generating facility and load are so close that their combined impact is "effectively the same as if they were located at the same substation," the transmission provider "would need to study only the local impacts," potentially reducing Network Upgrades.[76] The Clean Energy Trades read the Show Cause Order to contemplate a study process and service that is *predicated* on the generator's ability and commitment to minimize its impact on the transmission system while serving the associated load, namely through output limits matched to the load's demand and the control technologies or protection systems necessary to enforce them.

LARS contains no such predicate. A LARS Generating Facility need only have a POI in the same LRZ as the load's Point of Withdrawal.[77] MISO's LRZs are resource adequacy zones that can span an entire state or multiple states. MISO acknowledges that it considered—and rejected—narrower alternatives such as requiring the generator and load to be in the same Local Balancing Authority area "or through requiring that the location of the Generating Facilities be within a specific number of substations of the LARS Associated Load," and instead chose a construct that "enables more generation to serve a single load across a broader area."[78] MISO even describes the multiple-POI option as a "proximate plus" solution.[79] In direct contrast to the Show Cause Order's reasoning, LARS does not require the generator to limit its output to the load's

75 *Id.* PP 113, 116, 118.

76 *Id.* PP 112, 113 & n.256.

77 Transmittal Letter at 10; Tab A, Attachment X, § 3.12.2.

78 Transmittal Letter at 10, 21; *see also* Drake Testimony at 40.

79 Transmittal Letter at 21.

demand, to operate behind protection schemes, or to forgo injections beyond the load's needs. To the contrary, it grants full NRIS, studied for deliverability "across MISO's footprint," with the fifteen-year pairing term as the only meaningful limitation.[80] MISO confirms that it "will not limit the study process to the specific LRZ the generation/load pair will be located in."[81] After fifteen years, even the pairing requirement falls away, and the generator retains unrestricted Interconnection Service.[82]

This design is unjust and unreasonable even apart from the Show Cause Order. The justification for studying generation and load together—and for affording that study expedited treatment—is that electrically proximate generation and load reduce the burden on the transmission system. Where the generator may be located anywhere in a multi-state LRZ, that justification disappears. LARS would instead give a subset of generators access to an exclusive, expedited queue for full network injection rights without any requirement that they be operationally tied to the load they are intended to serve, allowing them to consume transmission headroom—potentially in already congested areas—ahead of DPP projects that have waited years for study. That is a preference for a class of interconnection customers defined by their contractual relationship with an LSE, not by any reduced impact on the grid.

iii. LARS projects would gain priority access to transmission capacity and avoid Network Upgrades they would otherwise trigger, shifting costs to DPP customers and other transmission customers.

MISO asserts that LARS will be conducted in "parallel" with the DPP and is "designed to preserve the integrity of MISO's existing generator interconnection processes," because LARS

80 Drake Testimony at 12-13, 29; Transmittal Letter at 10, 16-18.

81 Transmittal Letter at 13.

82 *Id.* at 18; Tab A, Attachment X, § 3.12.7.4.

requests "will not be included in ongoing DPP studies and therefore will not utilize any available transmission capacity in those studies."[83] On the surface, that appears equitable. The harm is in the details.

LARS studies "will not include Interconnection Requests currently in the generator interconnection queue that do not have an executed GIA."[84] LARS projects will therefore be studied as if the only other generation on the system is generation that already holds a GIA. That excludes every request in the DPP-2022 cycle without an executed GIA and every request in the DPP-2023 and DPP-2025 cycles, including projects with Phase III results and GIAs in negotiation. Because LARS cycles are designed to move significantly faster than the DPP, and because multiple backlogged DPP cycles have not yet reached GIA, LARS projects will claim available headroom and will avoid Network Upgrades that would likely be assigned to them if the higher-queued DPP projects were modeled. The practical effect is that LARS projects are treated as if they were studied first, even though the studies occur in "parallel" on paper, resulting in more constraints and higher Network Upgrade costs for DPP projects when they are finally studied against a system that LARS projects have already used.

MISO's answer to this concern is that "[t]he models from LARS and the DPP process will be reconciled through MTEP."[85] That is not a protection. MISO acknowledges that, where overallocation occurs, the resulting constraints "would be formalized in a future MTEP project" whose cost "will be allocated based on existing Tariff rules, which is likely to be the load within the transmission pricing zone where the transmission upgrade is required," and MISO candidly

83 Transmittal Letter at 4, 13.

84 *Id.* at 12 (quoting Drake Testimony at 29); *see also* Drake Testimony at 14.

85 Transmittal Letter at 20; Drake Testimony at 33.

states: "This cost shift is consistent with MISO's existing processes."[86] Nothing in the Filing ensures that the reconciliation will produce minimal upgrades, or that the resulting costs will not be borne by DPP interconnection customers as they move through later studies or by other transmission customers through MTEP cost allocation. MISO's assurance that there is only "a minimal risk of overallocation" is unsupported by any analysis in the record.[87] The Show Cause Order expressly identified the "risk of cost shifting among transmission customers" associated with large load additions as a potential source of unjust and unreasonable rates.[88] LARS would institutionalize that risk.

The risk is not hypothetical. MISO reports that during the MTEP26 cycle it approved 26 GW of Spot Loads through the EPR process, along with an additional 40 Corrective Action Plan transmission projects, and that another 10 GW of load is under study.[89] Eight of the top ten MTEP26 projects, totaling roughly $6 billion (approximately 41% of the $14.7 billion MTEP26 portfolio), are EPR projects. LARS is designed to channel a substantial share of that load growth, paired with generation, through a process whose cumulative effects on DPP studies MISO has not evaluated. High concentrations of new load and LARS generation in particular areas could create constraints that limit import capability, increasing congestion and the need for Network Upgrades where they might not otherwise have been needed—costs that DPP generators may become responsible for as they move through their own studies.

The asymmetry in model updates compounds the problem. MISO explains that the DPP "uses the most up to date MTEP base case when the study is kicked off and is not modified to

86 Transmittal Letter at 13; Drake Testimony at 33.

87 Drake Testimony at 33.

88 Show Cause Order, 195 FERC ¶ 61,212 at PP 66, 68.

89 Drake Testimony at 7.

include later approved MTEP projects or LLGIAs."[90] LARS studies, by contrast, begin from the latest MTEP base case, including recently approved EPR projects and prior LARS outcomes.[91] DPP customers therefore will not have the benefit of new load-driven MTEP projects in their modeling, while LARS customers will—which can produce very different Network Upgrade assignments and cost outcomes for DPP interconnection customers that sign GIAs after multiple LARS cycles have been processed.

The Clean Energy Trades recognize that, in accepting the revised ERAS proposal, the Commission found similar concerns about modeling exclusions and MTEP reconciliation to be speculative.[92] But that finding rested on a process capped at 68 requests and scheduled to end in 2027, and on the Commission's observation that future DPP customers would have notice of a time-limited ERAS process.[93] Those premises do not hold for LARS. A permanent process that adds up to thirty generation/load pairs per year, with no limit on total MW and no end date, will repeatedly and cumulatively claim headroom ahead of the DPP. The question is not whether harm to DPP customers is possible in a single bounded cycle, but whether MISO has shown that a perpetual priority process will not systematically shift capacity and costs to them. MISO has not attempted that showing.

iv. LARS diverts MISO's attention and resources from completing the reforms required by Order No. 2023.

In Order No. 2023, the Commission acted to address interconnection queue backlogs, reduce delays and uncertainty, and ensure that new resources can interconnect in a reliable,

90 Drake Testimony at 32.

91 *Id.* at 14, 28-29; Transmittal Letter at 12.

92 ERAS Acceptance Order, 192 FERC ¶ 61,064 at PP 259, 261-263.

93 *Id.* PP 258, 262, 264.

efficient, transparent, and timely manner on a non-discriminatory basis.[94] The Commission found that the serial, first-come, first-served study process is a source of queue delays.[95] LARS is a serial, first-come, first-served process.[96] MISO has now twice prioritized separate, one-off expedited processes that not all market participants can feasibly access on a comparable, not unduly discriminatory basis, while the DPP remains significantly backlogged. Although MISO asserts that LARS fees will fund additional staff and that "no staff time or resources will be shifted between the DPP queue and LARS,"[97] the time and resources MISO and its stakeholders devote to designing, defending, and administering parallel processes are time and resources not spent completing the DPP reforms that would benefit all interconnection customers. Commissioner Chang has observed that "[o]ne-off short-term fixes can create additional problems and at times beget further one-off fixes," and that "[d]eveloping these types of temporary proposals can detract from our collective efforts to address the more fundamental underlying issues."[98] A permanent parallel process is that concern made structural.

C. The Commission's Orders on MISO's ERAS Proposals Confirm That LARS Is Not Just and Reasonable.

Although MISO is entitled under FPA section 205 to propose a different approach than the Commission has previously accepted, the Commission's orders on MISO's ERAS proposals identify the elements that rendered an expedited interconnection process unjust and unreasonable, as well as the guardrails that ultimately allowed one to be accepted. LARS shares the flaws the

94 Order No. 2023, 184 FERC ¶ 61,054 at PP 1-3. [Confirm pin cite.]

95 *Id.* P 47.

96 Drake Testimony at 10, 22.

97 *Id.* at 32.

98 ERAS Acceptance Order, 192 FERC ¶ 61,064 (Chang, Comm'r, concurring at P 3).

Commission identified in the initial ERAS proposal and lacks the guardrails that saved the revised one.

i. No limit on volume.

The Commission rejected the initial ERAS proposal because "MISO's proposed Tariff places no limit on the number of projects that could be entered in the ERAS process," which threatened processing times "similar to the challenges with the current DPP queue."[99] Commissioner Rosner explained that he could not find the proposal just and reasonable "because the lack of limitations on the volume of interconnection requests threatens to overwhelm the ERAS queue with processing delays," and urged MISO to adopt practical limits such as "a one-time ERAS submittal window with a limit on the number of projects."[100] LARS limits the number of applications per study period but places no limit on the number of periods, the total number of projects, or the total MW that may be studied.[101]

ii. No tether to an identified need.

The Commission found that the initial, rejected MISO ERAS proposal did "not sufficiently describe how the ERAS process is sufficiently targeted to study only interconnection requests needed to meet the anticipated shortfall in generating capacity," and that it was "difficult to determine whether the volume of resource additions . . . will exceed what is needed to address MISO's near-term resource adequacy needs — in other words, whether the solution is narrowly tailored to fix the problem."[102] MISO did not even identify a shortfall here; it states that its existing

99 ERAS Rejection Order, 191 FERC ¶ 61,131 at P 199.

100 *Id.* (Rosner, Comm'r, concurring at PP 3, 6).

101 *See supra* Part II.B.i.

102 ERAS Rejection Order, 191 FERC ¶ 61,131 at PP 199, 201.

processes have been sufficient to ensure resource adequacy.[103] LARS eligibility turns on the size of a load and the existence of a contract, not on any resource adequacy or reliability need.

iii. Selection outsourced to non-independent entities without objective, transparent criteria.

Commissioner See explained that the initial, rejected MISO ERAS proposal "outsource[d] the expedited study selection process altogether," and that "MISO is the regulated entity, not the States, and the Commission's statutes require us to evaluate its processes."[104] She concluded that "the Commission cannot evaluate criteria that do not yet exist, that will vary State-by-State when they do, and that MISO does not plan to police."[105] LARS goes further: it outsources selection not to state regulators, but solely to LSEs—market participants that may compete with the IPPs seeking access. There are no criteria an LSE must apply in deciding which generators to sponsor, no transparency into the LSE's decision-making, and no mechanism for an excluded interconnection customer to challenge that decision.

iv. None of the guardrails that supported prior expedited processes.

In each instance in which the Commission accepted an expedited process that raised undue discrimination concerns, it weighed the proposal against guardrails that protected against *undue* discrimination. In PJM's RRI and CAISO's Interconnection Process Enhancements ("IPE"), all projects had the comparable ability to submit a request and work directly with the RTO/ISO; they were simply subject to objective, published scoring criteria rather than the traditional queue

103 Transmittal Letter at 3.

104 ERAS Rejection Order, 191 FERC ¶ 61,131 (See, Comm'r, concurring at PP 6-7).

105 *Id.* (See, Comm'r, concurring at P 7).

order.[106] PJM's RRI was a one-time process limited to 50 projects.[107] The revised ERAS process was accepted only after MISO added a cap, IPP and retail-choice carve-outs, strengthened RERRA verification, a same-LRZ need requirement, and a sunset date.[108] LARS contains no scoring criteria, no carve-outs, no regulatory verification, no cap, and no sunset. It is designed to be a permanent process in which one subset of market participants controls access to a generator interconnection queue. Accepting LARS would be inconsistent with the Commission's determinations in the ERAS proceedings.[109]

v. Legal durability.

Both concurring Commissioners emphasized that an expedited process must be legally durable to provide the certainty that customers need. Commissioner Rosner warned that "insufficient limitations on the requests that may be studied through ERAS risks a court striking down the proposal," and that if ERAS agreements had to be rescinded, "the upheaval could seriously harm MISO's customers."[110] Commissioner See likewise cautioned that "proposals that are not just and reasonable and not unduly preferential or discriminatory are vulnerable to judicial scrutiny," and that "a win today but a loss in court months (or years) later would not help MISO address its resource adequacy concerns."[111] Those concerns apply with greater force to a

106 ERAS Rejection Order, 191 FERC ¶ 61,131 at P 202 (discussing PJM RRI location criterion and CAISO IPE system need criterion); ERAS Acceptance Order, 192 FERC ¶ 61,064 at P 204 n.510; *see also* ERAS Rejection Order, 191 FERC ¶ 61,131 (See, Comm'r, concurring at P 7 n.13) (comparing PJM RRI "scoring criteria that are calibrated to satisfy PJM's resource adequacy needs").

107 ERAS Rejection Order, 191 FERC ¶ 61,131 at P 200.

108 ERAS Acceptance Order, 192 FERC ¶ 61,064 at PP 195, 203-205.

109 *See* CEA Protest at 42-45.

110 ERAS Rejection Order, 191 FERC ¶ 61,131 (Rosner, Comm'r, concurring at PP 1, 4).

111 *Id.* (See, Comm'r, concurring at P 9).

permanent process under which LLGIAs will be executed three times a year for the indefinite future.

D. MISO Has Not Demonstrated That LARS Satisfies the Independent Entity Variation Standard.

In Order No. 2003, the Commission permitted RTOs and ISOs to propose "independent entity variations" from the *pro forma* LGIP and LGIA, recognizing that an RTO or ISO "has different operating characteristics depending on its size and location and is less likely to act in an unduly discriminatory manner than a Transmission Provider that is a market participant."[112] Under that standard, an RTO/ISO must demonstrate that its proposed variations "are just and reasonable and not unduly discriminatory or preferential and accomplish the purposes of Order No. 2003."[113] The flexibility the standard affords rests on the RTO/ISO's independence. Although RTOs have far less incentive to discriminate, the same cannot be said of the LSEs and Transmission Owners to which LARS delegates control.

LARS deviates from at least three core elements of the *pro forma* LGIP. First, under the *pro forma* LGIP, an interconnection customer submits its interconnection request directly to the transmission provider, and the transmission provider—not a third party—administers access to interconnection service.[114] LARS instead requires that the request be submitted by the LSE, and it requires a POI agreed to and attested by the Transmission Owner before the request may be filed.[115] Second, the *pro forma* LGIP establishes a single queue in which requests are studied on

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112 Order No. 2003, 104 FERC ¶ 61,103 at P 827; *see also id.* P 26.

113 ERAS Rejection Order, 191 FERC ¶ 61,131 at P 3 (citing *Midcontinent Indep. Sys. Operator, Inc.*, 185 FERC ¶ 61,084, at P 11 (2023)); *see also* ERAS Acceptance Order, 192 FERC ¶ 61,064 at P 259 (applying standard to ERAS).

114 *See pro forma* LGIP § 3.1.

115 Tab A, Attachment X, §§ 3.12.1, 3.12.2.

the basis of queue position and, following Order No. 2023, in clusters on a first-ready, first-served basis.[116] LARS creates a separate, permanent queue studied serially on a first-come, first-served basis and excludes DPP requests without executed GIAs from its models.[117] Third, the *pro forma* LGIP makes interconnection service available on equal terms to any interconnection customer that satisfies objective readiness requirements; LARS conditions access on a commercial relationship with, and the sponsorship of, the LSE, with qualifying agreements that differ depending on whether the customer is an LSE.[118]

MISO does not attempt to justify these deviations under the independent entity variation standard; it simply asserts that LARS is just and reasonable and not unduly discriminatory.[119] Because MISO itself is not the entity to which the generator submits its LARS application, and because working through the LSE is a requirement for IPP participation, MISO has effectively installed the LSE as the facilitator of the LARS process. The rationale for the independent entity variation—that an independent RTO is less likely to discriminate—cannot justify a variation whose effect is to transfer gatekeeping authority from the independent RTO to market participants. Because the LSE is the gatekeeper of LARS in a way that goes beyond even the initial ERAS proposal, MISO cannot satisfy the independent entity variation standard, and LARS does not accomplish the purposes of Order No. 2003: to "minimize opportunities for undue discrimination and expedite the development of new generation."[120]

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116 *See pro forma* LGIP §§ 4.1, 7; Order No. 2023, 184 FERC ¶ 61,054 at P 47.

117 Drake Testimony at 10, 14, 22.

118 Tab A, Attachment X, § 3.12.2(i).

119 *See* Transmittal Letter at 18-22.

120 Order No. 2003, 104 FERC ¶ 61,103 at P 11.

III. REQUEST FOR CLARIFICATION

If the Commission does not reject the Filing, it should direct MISO to clarify whether the LARS same-LRZ requirement applicable to a LARS Interconnection Customer is determined based on a Generating Facility's physical location or on its POI to the MISO Transmission System. Proposed Attachment X, Section 3.12.2 appears to apply the same-LRZ requirement based on the Generating Facility's POI for an individual LARS Interconnection Customer, providing that "[t]he Point of Interconnection specified in a LARS Application must be located in the same Local Resource Zone as the Point of Withdrawal of the LARS Associated Load."[121] However, where multiple Generating Facilities serve a single LARS Associated Load behind different POIs, the proposed Tariff states that the Generating Facilities must "[b]e located in the same LRZ as the LARS Associated Load," creating ambiguity as to whether the requirement applies to the physical location of the Generating Facilities or to their respective POIs.[122]

The Clean Energy Trades request that the Commission direct MISO to clarify that, for purposes of the same-LRZ requirement, the relevant location is the applicable POI to the MISO Transmission System rather than the physical location of the Generating Facility, including where multiple Generating Facilities serve a single LARS Associated Load.

IV. CONCLUSION

For the reasons stated above, the Clean Energy Trades respectfully request that the Commission reject MISO's LARS proposal. In the event the Commission accepts any portion of the Filing, the Clean Energy Trades request that the Commission direct MISO to provide the clarification requested in Part III above.

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121 Tab A, Attachment X, § 3.12.2; *see also* Transmittal Letter at 10.

122 Tab A, Attachment X, § 3.12.2 (multiple Generating Facilities provision, item 2(a)); *see also* Drake Testimony at 23, 30.

Respectfully submitted,

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CERTIFICATE OF SERVICE

The undersigned certifies that a copy of this pleading has been served this day upon each person designated on the official service list compiled by the Secretary in this proceeding.

Dated this 23rd day of October, 2026.

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